

14. 9:00 AM CASE NUMBER: N25-2130
CASE NAME: DEEPAK MOORJANI VS. ROBBY DATTA
***HEARING ON MOTION IN RE: MONETARY SANCTIONS AGAINST PLAINTIFF**
FILED BY: DATTA, ROBBY
TENTATIVE RULING:

The parties are to appear on 5/12/26. The court will issue a ruling from the bench.

15. 9:00 AM CASE NUMBER: N25-2138
CASE NAME: DEEPAK MOORJANI VS. GENOVEVA SIRLOPU
***HEARING ON MOTION IN RE: MOTION FOR MONETARY SANCTIONS FILED BY**
FILED BY: SIRLOPU, GENOVEVA
TENTATIVE RULING:

The parties are to appear on 5/12/26. The court will issue a ruling from the bench.

16. 9:00 AM CASE NUMBER: N25-2433
CASE NAME: UFCW-NORTHERN CALIFORNIA EMPLOYERS JOINT PENSION TRUST FUND (FUND NO. 100) VS. JUG SHOP, INC.
HEARING IN RE: VERIFIED PET. TO CONFIRM ARBITRATION AWARD & FOR ATTY FEES (CONT FROM 1/20/26)
FILED BY:
***TENTATIVE RULING**

Background

Plaintiff has filed a Petition to confirm an arbitration award and for attorneys' fees. The Petition contains exhibits of over 200 pages, and Plaintiff often refers to particular sections of these exhibits yet makes nothing more than a broad citation to the entire exhibit. One example concerns the section of the Pension Agreement, in Exhibit B, that contains the provision requiring binding arbitration for any contribution disputes. This particular exhibit is over 100 pages, yet Plaintiff makes no attempt to identify the particular page – or pages – where this provision lies. Plaintiff simply cites to Exhibit B.

There are other examples of a similar vein.

The court is not going to wade through hundreds of pages of exhibits to find a particular, salient clause.

This court already pointed out this very problem in its order to continue this Petition, which was originally scheduled for 3/24/26, yet it does not appear Plaintiff took any corrective measures.

Disposition

Parties to appear on 5/12/26.

Petitioner shall be prepared to cite specific pages of their exhibits to support their arguments.

17. 9:00 AM CASE NUMBER: RS24-0953
CASE NAME: BG ASSET MANAGEMENT, INC. VS. LISA DAVIDSON
***HEARING ON MOTION IN RE: FOR LEAVE TO FILE A FIRST AMENDED CROSS-COMPLAINT**
FILED BY: DAVIDSON, LISA M.
TENTATIVE RULING:

Cross Complainant filed a Motion for leave to file a First Amended Cross Complaint, on 12/24/25. The Motion was timely filed and served.

Cross Defendants filed a response.

Background

The original Complaint, in which Cross Defendant BG Asset Management was the Plaintiff, was filed on 12/6/24, as an Unlawful Detainer. The lease agreement at issue covered a period beginning 6/1/22, through approximately 10/24/24, when notice was given to pay rent or quit. Subsequently, possession was no longer an issue. and Cross-Complainant filed a Cross Complaint on 7/29/25.

On 7/29/25, Cross Complainant filed a Cross Complaint ("Cross Complaint") in which only BG Asset Management was named as a Cross Defendant, and which alleged various forms of Breach of Contract, as well as a Common Count, all stemming from what appears to be the same lease agreement in the original Complaint. The facts centered on claims that the Cross Defendants did not maintain a habitable residence and engaged in retaliatory behavior that precluded Cross Complainant from the enjoyment of her home.

Cross Complainant sought damages of approximately \$42,653.09

Cross Defendant filed an Answer to the Cross Complaint on 8/28/25, then Cross-Complainant filed for leave to amend the Cross Complaint on 12/24/25.

In the proposed First Amended Cross Complaint ("FACC"), which is included as Exhibit One in the declaration of Cross Complainant's counsel ("Declaration"), filed 12/24/25, Cross Complainant adds Marc Guzman as a Cross Defendant, in addition to BG Asset Management. The FACC alleges that the Cross Defendants were owners, managers, employees or representatives of these parties. The FACC alleges a greater number of causes of action than the Cross Complaint, and the factual allegations are broader, but the crux appears to be similar to the allegations in the Cross Complaint: Cross